



Boulder County Land
Use Department
Publications

Guidelines for Board of Adjustment Hearings

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Guidelines for Board of Adjustment Hearings

The Board of Adjustment is a voluntary citizen's group appointed by the Board of County Commissioners (BOCC). The Board includes members from a range of communities and backgrounds. While the Board Members bring a variety of experience to their roles, they all have a common interest in the public planning process. Note that up to two members of the Planning Commission may substitute for these individuals in cases of absence or temporary vacancy.

Board of Adjustment's Role:

The Board of Adjustment holds regular meetings to hear appeals of any order, requirement, decision, or determination made by the Land Use Director or County Engineer in administering or enforcing Article 4 and related provisions (i.e., definitions in Article 18) of the Land Use Code, and to consider certain variances from the requirements of Article 4 of the Code. In order for the Board of Adjustment to grant a variance, or to decide an appeal which overturns an official decision made in enforcing this Code, at least four members of the Board of Adjustment must vote in favor of the applicant or appellant. The Board of Adjustment is the final decision maker for these processes.

Limits to the Board's Responsibility:

The Board does not have the ability to grant any variance:

1. From uses permitted in the zoning district;
2. From the minimum lot size required or maximum gross density allowed in any zoning district;
3. From any definition;
4. From the height, or yard requirements which may be obtained, or have been denied, through the approval of a special use.
5. Which authorizes a substantial modification of a planned unit development or special use approval by the County Commissioners; or
6. Which will cause an increase in the base flood to occur.

County Staff's Role:

In Variance cases the staff will present findings in the form of a staff recommendation as to whether a proposal meets the requirements of the Land Use Code and any other applicable regulations. In making this determination, all of the information submitted in the application is reviewed and a site visit is conducted.

In appeals of the Director or County Engineer's determinations the staff will present the County's basis for the determination under the Code and per the interpretational provisions in Article 1-900 of the Land Use Code.

Overview of the Public Hearing Process

1. Convening and introduction by the Chair of the Board of Adjustment
2. Staff Presentation – Basic cases 5 minutes. Involved cases 10-15 minutes
3. Appellant's/Applicant's presentation – 10 minutes for a Variance, and 15 minutes for an Appeal
 - a. Questions from the Board
4. Public Testimony – 5 minutes per speaker, unless otherwise noted
5. Staff response to issues and questions raised (5 minutes)
6. Appellant's/Applicant's response (10 minutes)
7. Board of Adjustment discussion and decision

Public Hearing

Addressing the Board

Members of the public are welcome to address the Board when the presiding officer asks for public testimony. In most hearings there is a sign-up sheet for the public prior to the start of the hearing. The Board will hear from those on the sign-up sheet first and then from others who wish to speak.

- Comments are generally limited to five minutes per speaker, unless otherwise determined. In cases where many individuals want to speak the Chair may further limit testimony time to allow others the opportunity to speak.
- Speakers must request additional time from the Director at least 15 days in advance of the hearing.
- The presentations may be timed so that the speaker knows when time is running out.

Before the Hearing

- If you have questions about an item on the agenda, feel free to contact the Land Use Department prior to the hearing. Knowing the answers to some of your questions prior to the hearing may help you prepare your response.
- Plan your presentation. If you have handouts or a long document, you can save time by making it available to the Land Use Department staff project manager at least 8 days before the public hearing. (**Please note:** The applicant must submit any additional materials at least 14 days prior to the hearing). This way it can be made available to members of the Board of Adjustment, in their packets, which they receive prior to the hearings.
- Determine if others will be addressing the same issues. If so, try to coordinate your presentation before the hearing to avoid duplication.
- Sign the speaker sign-up sheet at the table outside of the hearing room.

At the Hearing

- Be present at the start of the hearing. Presentations by staff may answer some of your questions. Everyone present usually will have an opportunity to speak, but sometimes, because of large turnouts, this is not possible. Of course, there is no requirement to speak. If you prefer, you may choose only to observe the process.
- When you are called to the podium, please give your name and address and whether you are in favor or against the proposal. For example: *"I'm John Doppler, my address is 101 Acoustic Way, and I approve of this proposal for the following reasons..."* If you are officially representing a group such as the Audubon Society, Chamber of Commerce, homeowner's association, etc., please state that for the record as well.
- For the sake of efficiency, you may want to make a statement such as *"I agree with the previous speaker(s)"* and then elaborate on any new or additional information you want to provide. Another time-saving measure is to mention that you represent others, and then ask everyone in your group to so indicate by raising their hand.
- Since the official record is the audio recording of the hearing, please ensure that you are adequately heard by adjusting the microphone to your height and speaking directly into it.
- Speakers should refrain from reading long documents, which may be submitted in advance and made a part of the public record. Any documents provided during the hearing also become part of the public record.

Decorum

- A public hearing is an official civil proceeding where it is inappropriate to cheer, boo, talk, or applaud. Members of the public are not expected to agree on all issues but must respect the process so that all viewpoints are heard. All comments should be addressed to the Chair. Questioning and arguing between individuals in the audience during the hearing is not permitted.

Submitting Materials

- Please remember that any reports, maps, photos, or other information you provide during the public hearing become part of the public record and cannot be returned unless arrangements are made to duplicate the material at your expense.
- We request that 8-1/2 x 11" copies of oversized materials be provided for filing and storage. Oversized materials that cannot be placed within the file may become damaged and are at risk of losing their association with the file.